

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
BOBBY D. CRUZ,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. CHAD POIDOMANI SHIELD NO. 3022,
P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS
ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO.
18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O.
ROBERT WICHES SHIELD NO. 16306 and SERGEANT
NICHOLA McGARRY,Defendant(s).
-----X

Index No.:

Date Purchased:

SUMMONSPlaintiff designates Bronx
County as the place of trial.The basis of venue is:
Plaintiff's residencePlaintiff resides at:
748 East Tremont Avenue
Bronx, NY 10457

County of Bronx

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York

May 2, 2019

MICHAEL BRAVERMAN
GETZ & BRAVERMAN P.C.

Attorneys for Plaintiff(s)

BOBBY D. CRUZ

172 East 161st Street

Bronx, New York 10451

(718) 993-3000

Our File No. 9216

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TO: THE CITY OF NEW YORK AND
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, NY 10007

P.O. CHAD POIDOMANI SHIELD NO. 3022
100 Church Street
New York, NY 10007

P.O. MIGUEL DONOVAN SHIELD NO. 27770
100 Church Street
New York, NY 10007

P.O. LUIS ALICEA SHIELD NO. 9537
100 Church Street
New York, NY 10007

P.O. JANET GIL SHIELD NO. 18305
100 Church Street
New York, NY 10007

P.O. MICHAEL DUGGAN SHIELD NO. 11111
100 Church Street
New York, NY 10007

P.O. ROBERT WICHES SHIELD NO. 16306
100 Church Street
New York, NY 10007

SERGEANT NICHOLA McGARRY
100 Church Street
New York, NY 10007

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
BOBBY D. CRUZ,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index #:

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. CHAD POIDOMANI
SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO.
27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL
SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111,
P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT
NICHOLA McGARRY.,

Defendants.

-----X

Plaintiff, by his attorneys GETZ & BRAVERMAN, P.C., complaining of the Defendant
respectfully alleges, upon information and belief:

1. At all times herein mentioned, Plaintiff **BOBBY D. CRUZ** was, and still is, a resident of the County of Bronx, State of New York.
2. Upon information and belief, that at all times hereinafter mentioned, **THE CITY OF NEW YORK**, (hereinafter referred to as "CITY", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, that at all times hereinafter mentioned, the defendant, **CITY**, its agents, servants, employees and/or licensees operated, maintained and controlled **NEW YORK CITY POLICE DEPARTMENT**, including all the police officers thereof.
4. Upon information and belief, and at all times hereinafter mentioned, **NEW YORK CITY POLICE**

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DEPARTMENT, its agents servants and employees supervised, maintained and controlled its personnel.

5. Upon information and belief, at all times mentioned, Defendants **P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY** , were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
6. That a Notice of Claim was filed on July 19, 2018.
7. That more than 30 days have elapsed since the Notice of Claim and Intention to Sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.
8. That this action is commenced within one year and 90 days after the cause of action arose.

AS AND FOR THE FIRST CAUSE OF ACTION

9. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "8" with the same force and effect as if more fully set forth herein.
10. That on or about May 23, 2018, the defendants acting within the scope and authority of their employment and office, wrongfully and falsely accused the plaintiff, **BOBBY D. CRUZ** of the crimes of possession of a fire arm , a crime falsely claimed to be observed by

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P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY.

11. Upon information and belief, on or about May 23, 2018 and from that time until the dismissal of charges, which was a favorable termination for the accused by the Bronx County Criminal Court, Defendants **CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY,** deliberately and maliciously prosecuted Plaintiff **BOBBY D. CRUZ**, an innocent male without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.
12. That the said accusations against plaintiff, **BOBBY D. CRUZ** were caused by the said defendants, their agents, servants and employees, without legal process, without authority of the law and without any reasonable cause, or belief, that the plaintiff, **BOBBY D. CRUZ**, was in fact guilty of such crimes.
13. That the accusations against the plaintiff herein was caused, allowed and permitted by the defendants herein, their agents, servants and/or employees, wrongfully, unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and on the charges having been

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made.

14. That as a result of the aforesaid accusations made by the said defendants, their agents, servants and employees, acting under the scope of their office and within the scope of their authority, Plaintiff **BOBBY D. CRUZ** was falsely, publicly, wickedly and maliciously accused.
15. That the aforesaid accusations of the plaintiff, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence of the part of the plaintiff herein.
16. That by reason of the aforesaid, the plaintiff was subjected to great indignities, humiliation and ridicule; was greatly injured in his credit and circumstances; was prevented from preforming and transacting his necessary affairs and business; and was incapacitated from his usual occupation.
17. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A SECOND CAUSE OF ACTION

18. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "17", with the same force and effect as if more fully and at length set forth herein.

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19. That on or about the May 23, 2018, and prior and subsequent thereto, in the County of Bronx, City and State of New York, the defendants, acting within the scope and authority of their office and employment, carelessly, recklessly, maliciously and negligently caused, permitted, allowed, created and instigated the prosecution, and continuing prosecution, of the plaintiff with deliberate indifference.
20. That the plaintiff was wholly innocent, and was forced by the defendants, their agents, servants and/or employees, to submit to lengthy Court proceedings.
21. That on or about the 23rd day of May, 2018, and prior and subsequent thereto, the defendants, their agents, servants and employees falsely and maliciously, without probable cause or provocation charged the plaintiff with various crimes, including misdemeanors and violations.
22. That the said prosecution, criminal charges and hearings were instituted and procured by the defendant, their agents, servants and/or employees in this action unlawfully, maliciously and without reasonable or probable cause, with actual malice and was terminated in plaintiff's favor.
23. That by reason of the aforesaid, the plaintiff still suffers and, upon information and belief will continue to suffer, great indignities, humiliation and ridicule; was greatly injured to his credit and circumstances; was prevented from performing and transacting his necessary

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affairs and business; and was incapacitated from his usual occupations. Upon information and belief, the plaintiff has expended diverse sums of monies, in an effort to extricate himself from the imprisonment, indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction.

24. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "24" , with the same force and effect as if more fully set forth herein.
26. That the defendant, **NEW YORK CITY POLICE DEPARTMENT**, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they were reckless, careless, and negligent in the manner in which they declared the plaintiff in violation of the law; in that they caused, permitted and made false accusations on or about May 23, 2018, in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and

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negligent.

27. That the aforesaid occurrence and malicious prosecution, and negligent performance of duties, was caused solely and wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.
28. That by reason of the aforesaid, the plaintiff has been subjected to great indignities, humiliation and ridicule; was greatly injured in his credit and circumstances; was prevented from performing and transacting his necessary affairs and business. Upon information and belief plaintiff has expended diverse sums of monies and incurred debt, in an effort to extricate himself from the imprisonment, indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements.

AND AS FOR A FOURTH CAUSE OF ACTION

29. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "28" inclusive with the same force and effect as if more fully and at length set forth herein.
30. That the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW YORK, NEW YORK CITY POLICE**

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DEPARTMENT, 48TH PRECINCT, P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY, were careless, reckless and negligent in hiring and retaining its employees, in that the said defendants' employees lacked the experience, deportment and ability to be employed by the defendant; in that the defendants failed to exercise due care and caution in their hiring practices, and in particular, hiring the police officers involved who lacked the mental capacity and the ability to function as employees of the aforementioned defendants; in that the defendant lacked the maturity, sensibility and intelligence to be employed by the defendants; in that the defendants knew of the lack of ability, experience, deportment and maturity of said defendants' employees when they hired them to be employees; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

31. That the defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**, P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY, were careless, reckless and negligent in hiring and retaining its employees, in that the said defendants' employees lacked the experience, savvy, knowledge, deportment and ability to be employed by the defendant, **NEW YORK CITY POLICE DEPARTMENT**; in that defendants failed to exercise due to care and caution in their hiring practices, and in particular, hiring the police

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officers involved who lacked the mental capacity and the ability to function as employees of the aforementioned defendant; in that the defendants lacked the maturity, sensibility and intelligence to be employed by the defendant; in that the defendants knew of the lack of ability, experience, deportment and maturity of said defendants' employees when they hired them to be employees; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

32. That the aforesaid occurrence, the false arrest and imprisonment, malicious prosecution, negligence in performance of duties and negligence in hiring and retention and the resulting injuries to mind therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.
33. That by reason of the aforesaid, the plaintiff has been subjected to indignities and humiliation was greatly injured in his credit and circumstances caused by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction.
34. That by the reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A FIFTH CAUSE OF ACTION

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "34" inclusive with the same force and effect as if more fully and at length set

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forth herein.

36. That the defendants **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHERS SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY**, acting within their scope and authority of their office and employment, in their capacity as a law enforcement office, was negligent and careless in the supervision, maintenance and control of police officers under their supervision and more particularly the supervision of the members of **NEW YORK CITY POLICE DEPARTMENT**, in that the defendants failed to exercise due care and caution in their supervision of same and in particular causing, permitting and allowing police officers under their supervision, and more particularly the defendants' agents, servants, employees and/or licensees, to act in a careless, reckless and negligent manner without administering proper control, discipline and supervision thereby allowing police officers involved herein, to act in an unlawful and illegal manner; in causing, permitting and allowing persons within the employ of the **CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHERS SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY**, search plaintiff, **BOBBY D. CRUZ** in that the defendants knew, or should have known, of the lack of ability, experience, deportment and maturity of the said defendant police officers under their care, supervision and control and more particularly those police officers with a propensity to act in unlawful and illegal manner; and that

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said agents, servants and employees failed to properly investigate actions taken by police officers under their care, supervision and control, and were otherwise careless and negligent.

37. That the aforesaid occurrence and malicious prosecution of the Plaintiff, was caused by the negligent performance of duties, negligent hiring and retention and negligent supervision and training, was caused solely wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.
38. That by reason of the aforesaid, the plaintiff has been subjected to great indignities, humiliation and ridicule, was greatly injure in his credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and was prevented to perform his usual occupation. Upon information and belief, plaintiff has expended and incurred diverse sums of money in an effort to extricate himself from the indignities and humiliation imposed upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction.
39. That by the reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A FIFTH CAUSE OF ACTION

40. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs

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"1" through "39" inclusive with the same force and effect as if more fully and at length set forth herein.

41. That on or about May 23, 2018, in the County of Bronx, City and State of New York, at which time and place defendant **P.O. CHAD POIDOMANI SHIELD NO. 3022**, was acting within the scope of his/her employment, authority and office as part of their regular and official employment as employees for defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**.
42. That on or about May 23, 2018, in the County of Bronx, City and State of New York, at which time and place defendant **P.O. MIGUEL DONOVAN SHIELD NO. 27770**, was acting within the scope of his/her employment, authority and office as part of their regular and official employment as employees for defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**.
43. That on or about May 23, 2018, in the County of Bronx, City and State of New York, at which time and place defendant **P.O. LUIS ALÍCEA SHIELD NO. 9537**, was acting within the scope of his/her employment, authority and office as part of their regular and official employment as employees for defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**.
44. That on or about May 23, 2018, in the County of Bronx, City and State of New York, at

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which time and place defendant **P.O. JANET GIL SHIELD NO. 18305**, was acting within the scope of his/her employment, authority and office as part of their regular and official employment as employees for defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**.

45. That on or about May 23, 2018, in the County of Bronx, City and State of New York, at which time and place defendant **P.O. MICHAEL DUGGAN SHILED NO. 1111**, was acting within the scope of his/her employment, authority and office as part of their regular and official employment as employees for defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**.

46. That on or about May 23, 2018, in the County of Bronx, City and State of New York, at which time and place defendant **P.O. ROBERT WICHERS SHIELD NO. 16306**, was acting within the scope of his/her employment, authority and office as part of their regular and official employment as employees for defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**.

47. That on or about May 23, 2018, in the County of Bronx, City and State of New York, at which time and place defendant **SERGEANT NICHOLA McGARRY**, was acting within the scope of his/her employment, authority and office as part of their regular and official employment as employees for defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE**

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DEPARTMENT.

48. As plaintiff was lawfully and properly enjoying his right as a citizen of the United States of America, said defendants' employees of New York City Police Department, **CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY**,, who having the real and apparent ability to cause imminent harmful and offensive injury, and the power and authority to warrant for the prosecution of the Plaintiff, did so threaten these acts upon the plaintiff, and did so cause the plaintiff herein to be prosecuted and in violation of plaintiff's civil rights; in failing to recognize, detect and investigate same; in revoking the rights of the plaintiff herein; in failing to train, monitor, control and/or supervise their agents, servants and/or employees; and in prosecuting and continuing to prosecute the plaintiff.
49. That defendants, **CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY**, failed to properly and adequately ascertain that

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plaintiff was not in violation of the law and that plaintiff was prosecuted, depriving him of his rights and liberties as set forth in the Constitutions of the United States of America and of the State of New York without any conduct on the part of the plaintiff to so warrant, to wit:

- a) in that all the actions of the defendants, their agents, servants and/or employees, acting within scope and authority of their employment and office, committed with the intention to cause economic and mental injury to the plaintiff, prosecuted and the plaintiff without his consent; plaintiff was at all times conscious of his prosecution and did not consent the prosecution was not otherwise privileged;
- b) the prosecution and imprisonment were not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under the color of the statute, ordinances, regulations, customs and usages of the United States of America, the State of New York, City of New York and County of Bronx, within the scope of their employment and under the authority of their office as employees of The New York City Police Department for said state.
- c) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, caused and unlawful prosecution and of the plaintiff thus depriving him of his civil rights as

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guaranteed by the Constitution of the United States of America when they in a willful, wanton, reckless, carel  ss and negligent manner deprived the plaintiff of his due process, liberty and freedom without his consent and with the intention of causing harm and deprivation of his freedom and civil liberties, all without warrant, probable cause whatever; and,

d) that the defendants, their agents, servants and employees failed to adequately and properly train, supervise, monitor, discipline or in any other way control the behavior and performance of police officers, their agents, servants and/or employees; that in their practices in the exercise as a police officer, their exercise of supervisory functions and their failure to enforce the laws of the United States of America, the State and City of New York is evidence of the careless and negligent lack of cautious regard for the rights of the public including the plaintiff herein; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals, and reasonable police officers would show in the execution of, and functions of the police officers; and,

e) the failure of the defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants, in

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the exercise of their functions; in that their failure to enforce the laws of the United States of America, the State of New York and the City of New York were carried out carelessly and negligently and without regard for the consequences, so as to display a careless and negligent disregards for the dangers of harm and injury to the citizens of the United State of America, and the State and City of New York including, plaintiff; and,

f) due to the acts of the defendants, their agents, servants and employees, and the failure of the defendants, to control, discipline, train, monitor, supervise and/or properly hire personnel under their care, supervision and control, and the continued employment of same presents a clear and present danger to the citizens of the United States of a America and the City and State of New York; and,

g) That the said prosecution was instituted and procured by the defendant, their agents, servants and employees, under the scope and authority of their office and employment in this action, unlawfully, carelessly and negligently and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the revocation of freedom; hearing and criminal proceedings by the said defendants against the plaintiff was without

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probable cause with actual malice and was ultimately terminated in favor of the plaintiff, and,

h) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, permitted the use of policy, and or drafted policy that was violating the Constitutional rights of the above named plaintiff; and, in that each and all of the employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Bronx, and under the authority of their office as police officers for said State, City and County.

50. Defendants, **P.O. CHAD POIDOMANI SHIELD NO. 3022**, did not have probable cause to prosecute prison the plaintiff before, after or at the time of this incident and deprive plaintiff of his Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.
51. Defendants, **P.O. MIGUEL DONOVAN SHIELD NO. 27770**, did not have probable cause to prosecute prison the plaintiff before, after or at the time of this incident and deprive plaintiff of his Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions

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of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.

52. Defendants, **P.O. LUIS ALICEA SHIELD NO. 9537**, did not have probable cause to prosecute prison the plaintiff before, after or at the time of this incident and deprive plaintiff of his Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.
53. Defendants, **P.O. JANET GIL SHIELD NO. 18305**, did not have probable cause to prosecute prison the plaintiff before, after or at the time of this incident and deprive plaintiff of his Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.
54. Defendants, **P.O. MICHAEL DUGGAN SHIELD NO. 11111**, did not have probable cause to prosecute prison the plaintiff before, after or at the time of this incident and deprive plaintiff of his Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.
55. Defendants, **P.O. ROBERT WICHES SHIELD NO. 16306**, did not have probable cause to

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prosecute prison the plaintiff before, after or at the time of this incident and deprive plaintiff of his Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.

56. Defendants, **SERGEANT NICHOLA McGARRY**, did not have probable cause to prosecute prison the plaintiff before, after or at the time of this incident and deprive plaintiff of his Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.

57. Defendants, **P.O. CHAD POIDOMANI SHIELD NO. 3022**, did not have probable cause to prosecute plaintiff before, after or at the time of this incident, and failed to properly safeguard the plaintiff's Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.

58. Defendants, **P.O. MIGUEL DONOVAN SHIELD NO. 27770**, did not have probable cause to prosecute plaintiff before, after or at the time of this incident, and failed to properly safeguard the plaintiff's Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.

59. Defendants, **P.O. LUIS ALICEA SHIELD NO. 9537**, did not have probable cause

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to prosecute plaintiff before, after or at the time of this incident, and failed to properly safeguard the plaintiff's Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.

60. Defendants, **P.O. JANET GIL SHIELD NO. 18305**, did not have probable cause to prosecute plaintiff before, after or at the time of this incident, and failed to properly safeguard the plaintiff's Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.
61. Defendants, **P.O. MICHAEL DUGGAN SHIELD NO. 11111**, did not have probable cause to prosecute plaintiff before, after or at the time of this incident, and failed to properly safeguard the plaintiff's Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.
62. Defendants, **P.O. ROBERT WICHES SHIELD NO. 16306**, did not have probable cause to prosecute plaintiff before, after or at the time of this incident, and failed to properly safeguard the plaintiff's Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.
63. Defendants, **SERGEANT NICHOLA McGARRY**, did not have probable cause to prosecute plaintiff before, after or at the time of this incident, and failed to properly safeguard the plaintiff's Constitutional rights as set forth in the Constitution of the United States,

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particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.

64. That at all times hereinafter mentioned, the defendants, **P.O. CHAD POIDOMANI SHIELD NO. 30212**, were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.
65. That at all times hereinafter mentioned, the defendants, **P.O. MIGUEL DONOVAN SHIELD NO. 27770**, were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.
66. That at all times hereinafter mentioned, the defendants, **P.O. LUIS ALICEA SHIELD NO. 9537**, were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.
67. That at all times hereinafter mentioned, the defendants, **P.O. JANET GIL SHIELD NO. 18305**, were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official

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capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.

68. That at all times hereinafter mentioned, the defendants, **P.O. MICHAEL DUGGAN SHIELD NO. 11111**, were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.
69. That at all times hereinafter mentioned, the defendants, **P.O. ROBERT WILCHERS SHIELD NO. 16306**, were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.
70. That at all times hereinafter mentioned, the defendants, **SERGEANT NICHOLA McGARRY**, were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.

71. That at all times hereinafter mentioned, defendants, **P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY** were acting pursuant to orders and directives from defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT** and acting within the scope and authority of his/their employment and office.
72. That at all times hereinafter mentioned, defendants, **P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY**, were acting pursuant to orders and directives from defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT** within the scope and authority of their employment and office.
73. That at all times hereinafter mentioned, defendants, **P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA**

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SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN

SHIELD NO. 11111, P.O. ROBERT WICHERS SHIELD NO. 16306 and SERGEANT

NICHOLA McGARRY, were acting pursuant to, and within the scope and authority of their employment and office.

74. That during all times hereinafter mentioned, the defendants, **P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHERS SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY**, and each of them separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of New York City Police Department and the defendants herein, separately and in concert, engaged in the reckless, careless and negligent conduct herein mentioned to the injury and detriment of the plaintiff and deprived plaintiff by the First and Fourteenth Amendments to the Constitution of the State of New York and the laws of the City and State of New York.
75. The defendants, **P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHERS SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY**, were employed by the defendants, **THE**

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CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of false prosecution and that said defendants, **P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY**, did not confer due process upon the plaintiff herein, and in denied the rights, privileges and immunities guaranteed plaintiff and other citizeris of the United States of America by the Constitution of the United States of America.

76. This systematic pattern of conduct consists of a large number of individual acts of violations of plaintiff's civil rights, and other citizens, by employees of **NEW YORK CITY POLICE DEPARTMENT** and more particularly the defendants, **P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY**, in acting in concert with persons unknown to the plaintiff and under color of law, and said acts, while carried out under color of law, within the scope and authority of their office and employment, having no justification or excuse in law and are instead reckless, careless

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and negligent, unrelated to any activity in which police officers may properly, appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

77. Although defendants **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, knew or should have known of the fact that this pattern of conduct was carried out by , **P.O. CHAD POIDOMANIS SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHERS SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY** have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other Citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.
78. The conduct of the defendants, **P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHERS SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY** deprived plaintiff of the following rights, privileges and immunities secured to them the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and

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Fourteenth Amendments of the Constitution of the United States; and

- b) The right of plaintiff no to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the fourteenth Amendment to the Constitution of the United States.

79. That by reason of the aforesaid negligence, malicious prosecution, negligent performance of duties, negligent hiring and retention, negligent training and supervision, and violation of civil rights caused by the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY**, acting within the scope and authority of their office and employment, who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiff, and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O.**

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JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O.

ROBERT WICHERS SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY

violated 42 U.S.C. Sec. 1983 in that the defendants, THE CITY OF NEW YORK AND NEW

YORK CITY POLICE DEPARTMENT, P.O. CHAD POIDOMANI

SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA

SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN

SHIELD NO. 11111, P.O. ROBERT WICHERS SHIELD NO. 16306 and SERGEANT

NICHOLA McGARRY acted as persons who under color of any statute, ordinances, regulation,

custom or usage of the City of New York and the State of New York, subjected or caused to be

subjected, citizens of the United States of America or other persons within the jurisdiction,

particularly the plaintiff thereof to be deprived of his rights, privileges and immunities received by

the Constitution and laws of the United States of America and of the State of New York; was

subjected to great indignities and humiliation, and pain and distress of mind and was held up to

scorn and ridicule, injured his character and reputation, was prevented from attending his usual

business and vocation and was injured in his reputation in the community and the acts

aforementioned were committed with the aim of injuring and damaging plaintiff.

80. That the aforesaid occurrence, malicious prosecution, negligent performance of duties, negligent hiring and retention, negligent supervision and training and violation of civil rights, was cause

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solely and wholly by reason of the negligence of the defendants **P.O. CHAD POIDOMANI SHIELD NO. 3022, P.O. MIGUEL DONOVAN SHIELD NO. 27770, P.O. LUIS ALICEA SHIELD NO. 9537, P.O. JANET GIL SHIELD NO. 18305, PO. MIGUEL DUGGAN SHIELD NO. 11111, P.O. ROBERT WICHES SHIELD NO. 16306 and SERGEANT NICHOLA McGARRY** Defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, without any negligence on the part of the plaintiff herein.

81. That by reason of the aforesaid, the plaintiff has been subjected to great indignities, humiliation and ridicule; was greatly injured in his credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and he was incapacitated from his usual occupation. Upon information and belief, plaintiff has expended diverse sums of monies, and incurred debt, in an effort to extricate himself from the imprisonment, indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursement and, upon information and belief, will expend further sums in that direction.
82. That by reason of the aforesaid, the plaintiff requests the following relief:
- a) Punitive damages in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.
 - b) Compensatory damages in the amount which exceeds the jurisdictional limits

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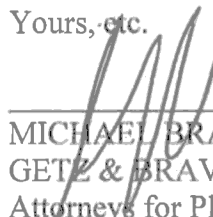
of all lower courts which otherwise would have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York

May 2, 2019

Yours, etc.



MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)

BOBBY D. CRUZ
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9216

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK

SS:

COUNTY OF BRONX

BOBBY D. CRUZ, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed SUMMONS & COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

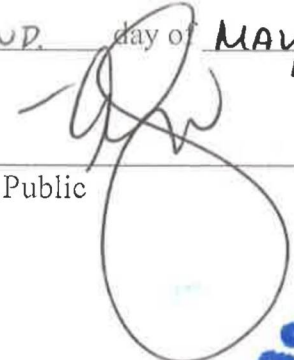
DATED: Bronx, New York
5/2/2019



Sworn to before me this

2ND day of MAY, 2019

Notary Public



Antonia L. Walvin
Commissioner of Deeds
City of New York No. 3-7477
Certificate Filed in
Bronx County
Commission Expires 10-1-2019